

2:00PM LINE 8

25-CIV-08356

JOSE MONTEVERDE VS PACIFICA LINDA MAR, INC.

JOSE LUIS MONTEVERDE  
PACIFICA LINDA MAR, INC.

SEUNG YANG  
JANELLE L. MENGES

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**Defendant's Petition to Compel Arbitration, Dismiss Class Claims, and Stay Further Proceedings Pending Arbitration**

**TENTATIVE RULING:**

Defendant Pacifica Linda Mar, Inc.'s Motion to Compel Arbitration of plaintiff's claims is **GRANTED**. Plaintiff's class claims and individual PAGA claims are compelled to arbitration, and plaintiff's non-individual PAGA claim is stayed pending the outcome of arbitration.

Defendant argues that the court should not consider plaintiff's opposition because it was filed late according to the parties' proposed briefing schedule for the motion, submitted as part of the parties' Joint Case Management Statement on June 16, 2026. Plaintiff's counsel responds that because the court did not confirm the parties' schedule, counsel did not calendar the dates. Plaintiff's counsel's declaration adequately explains the delay, and defendant has not shown that it was prejudiced. Plaintiff filed his opposition almost a month before the hearing on the motion and defendant's reply brief shows that it had adequate time to respond to the opposition.

**A. The Parties Entered into an Arbitration Agreement**

Defendant has met its burden and proved by a preponderance of evidence that the parties entered into an arbitration agreement and that the dispute is covered by the agreement. (Knight, Cal. Prac. Guide: Alt. Disp. Res. (Rutter, Dec. 2025 Update) ¶ 5:320.)

Joanne Lane, defendant's Administrator and Custodian of Records, who is responsible for "day-to-day operations of the facility, including Human Resources, Payroll, and Staff Development" states that she is familiar with the process of onboarding employees. (Lane Decl., filed Mar. 6, 2026, ¶¶ 2-3.) Ms. Lane states that plaintiff signed a Voluntary Mutual Agreement to Arbitrate (Agreement) on or about July 18, 2023, and attached a copy of the agreement as Exhibit A to her declaration. (*Id.*, ¶ 5, exh. A.)

The parties to the Agreement are identified as "Linda Mar Care Center" and "this employee named below." (Agreement, at p. XIII.) The Agreement has a line for "Employee Signature" with a signature above it, a line for "Printed Employee Name," above which is handwritten "Jose Monteverde." (*Id.*, at p. XVI.) The signature and printed name are hand dated July 18, 2023. There are also lines for "Company Representative Signature" and "Title of Company Representative," and a space to write the date next to those lines, all of which are blank.

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Plaintiff raises two objections to the Agreement: the name of the company on the Agreement does not match the name of the defendant he sued, and the Agreement is not countersigned. Defendant has adequately addressed both issues.

In support of its reply, defendant has submitted another declaration from Ms. Lane in which she states that defendant “has utilized two fictitious business names in connection with the operation of the facility for many years,” including “Linda Mar Care Center,” and that defendant is registered to do business using its fictitious names. (Lane Dec. iso Reply, filed Sept. 2, 2026, ¶¶ 4-6.) Attached to that Reply Declaration is a copy of defendant’s fictitious business name statement for the name “Linda Mar Care Center,” filed in San Mateo County on June 10, 2026. (*Id.*, ¶ 5, exh. B.)

The fictitious business name registration document demonstrates that the name “Linda Mar Care Center” on the Agreement is one of defendant’s “doing business as” names. Defendant is therefore the same legal entity as its dba name “Linda Mar Care Center.” (See *Pinkerton’s, Inc. v. Superior Court* (1996) 49 Cal.App.4th 1342, 1348.) Accordingly, defendant is a signatory to and can enforce the Agreement against plaintiff. (See Bus. & Prof. Code, § 17918 [“No person transacting business under a fictitious business name contrary to the provisions of this chapter, or his assignee, may maintain any action upon or on account of any contract made, or transaction had, in the fictitious business name in any court of this state until the fictitious business name statement has been executed, filed, and published as required by this chapter.”].)

Despite defendant’s lack of signature on the Agreement, defendant has manifested its intent to be bound by the Agreement by drafting the Agreement; presenting it to plaintiff and other employees as part of its regular onboarding process (Lane Decl., ¶ 4); using language binding both parties (see Agreement, generally); and seeking to enforce the Agreement through this motion. (See *Serafin v. Balco Props. Ltd., LLC* (2015) 235 Cal.App.4th 165, 176; *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 398-399.)

Defendant has also demonstrated that the FAA applies to the Agreement because the Agreement explicitly states that the FAA applies. (Agreement, at p. XII; see *Tuufuli v. West Coast Dental Administrative Services, LLC* (2026) 117 Cal.App.5th 1048, 1054 [“the FAA governs the arbitration agreement between Tuufuli and West Coast Dental because the parties agreed that it would.”].) The Agreement includes a class action waiver clause, which is enforceable. “[A]rbitration agreements governed by the FAA may waive classwide arbitration regardless of whether class arbitration procedures are available and despite state law finding such waivers unconscionable.” (Chin, *Cal. Prac. Guide: Employment Lit.* (Rutter, April 2025 Update) ¶ 18:621.31; see also *id.*, ¶ 18:363 [“The FAA preempts California law that bars as unconscionable class arbitration waivers in employment agreements”].)

### **B. The Agreement is Not Unconscionable**

Plaintiff argues that the Agreement is both procedurally and substantively unconscionable.

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Unconscionability has both a substantive and procedural element. (*Stoker v. Blue Origin, LLC* (2026) 120 Cal.App.5th 91, 104 (*Stoker*)). “The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.” (*OTO, LLC v. Kho* (2019) 8 Cal.5th 111, 125 (*Kho*)). This element “is generally established by showing the agreement is a contract of adhesion, i.e., a ‘standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’” (*Ramirez v. Charter Communications* (2024) 16 Cal.5th 478, 492 .) Substantive unconscionability “‘pertains to the fairness of an agreement’s actual terms and to assessments of whether they are overly harsh or one-sided.’” (*Kho, supra*, at p. 125.)

“Both procedural and substantive unconscionability must be shown for the defense to be established, but ‘they need not be present in the same degree.’ [Citation.] Instead, they are evaluated on “‘a sliding scale.’” [Citation.] ‘[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to’ conclude that the term is unenforceable. [Citation.] Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required. [Citation.] A contract’s substantive fairness ‘must be considered in light of any procedural unconscionability’ in its making.” (*Kho, supra*, 8 Cal.5th at p. 125.) “‘The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.’” The burden of proving unconscionability rests upon the party asserting it. (*Kho, supra*, at p. 126; *Stoker, supra*, 120 Cal.App.5th at p. 104.)

Ms. Lane states that employees are presented with the standardized Agreement as part of the onboarding process. The Agreement is an adhesion contract. (See *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492 [procedural unconscionability “is generally established by showing the agreement is a contract of adhesion, i.e., a ‘standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’”].)

However, the Agreement contains an opt-out provision, which “tends to undercut a finding of procedural unconscionability.” (*Cluck v. GEO Secure Services, LLC* (2026) 122 Cal.App.5th 249, 347 Cal.Rptr.3d 44, 50.) At the top of the last page, in a section titled “Opt Out Period,” the Agreement states that “[e]ither Party may voluntarily opt out of this Agreement by providing a written notice of revocation to the other Party within fifteen (15) days after signing this Agreement.” (Agreement, at p. XVI.) Like the agreement considered by the court in *Cluck*, the Agreement here does not include a check box allowing plaintiff to opt out and only has a signature line for agreeing, not for disagreeing. (*Cluck, supra*, 247 Cal.Rptr.3d at p. 51.) The opt-out procedure here is distinct from that in *Cluck* because it does not require any specific process, but instead only requires that revocation be written. The court therefore infers that plaintiff could have opted out by submitting any writing indicating that he was opting out of the Agreement. Because plaintiff did not submit a declaration in support of his opposition, however, the court lacks information as to what burden this procedure may have presented to him.

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Plaintiff also argues that defendant's use of fictitious business names "creates significant confusion," and plaintiff makes general statements about how this negatively impacts an employee's ability to meaningfully evaluate whether to surrender rights. (MPA, at p. 6:9-16.) However, plaintiff neither argues nor presents evidence that *he* was confused, or that defendant's use of a fictitious business name impacted *his* ability to evaluate the Agreement. Without this evidence, the court cannot find procedural unconscionability as to defendant's use of a fictitious business name.

Notwithstanding this, because there is at least a minimal degree of procedural unconscionability, however, the court proceeds to consider whether the Agreement is substantively unconscionable.

Plaintiff argues that the Agreement is overbroad because its scope covers more than employment disputes. The Agreement states the following:

**Voluntary Mutual Agreement to Arbitrate and Waive Jury Trial.** Company and Employee agree to resolve any and all disputes between them, past, present or future, whether or not arising out of or in any way related to Employee's application for employment with Company or the employment relationship, including any disputes upon termination, by binding arbitration as the sole and exclusive remedy of the Parties to the fullest extent permitted by law.

(Agreement, at p. XIII, emphasis in original.)

Defendant argues that the language of the Agreement extending its application to all claims whether or not they arise from plaintiff's application for employment or employment relationship "simply means that if a claim arises out of employment but does not involve plaintiff's application or termination, it is still covered under the agreement, and vice versa." (Reply, at p. 7:8-10.) Defendant points to the Agreement's list of covered disputes, arguing that they are all employment-related, as further proof of this. (*Id.*, at p. 7:11-13.)

Plaintiff argues that the scope provision is analogous to one found unconscionable in *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312 (*Cook*), while defendant argues that the scope provision is more akin to the one found valid in *Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241 (*Ayala-Ventura*).

The *Cook* court found the agreement's scope unconscionably broad:

The arbitration agreement drafted by USC applies to all claims "whether or not arising out of Employee's University employment, remuneration or termination." If USC had been concerned about capturing termination or retaliation claims related to Cook's employment, it simply could have limited the scope of the agreement to claims arising out of or relating to her employment or termination. It is difficult to see how it is justified to expect Cook — as a condition of her employment at the university — to give up the right to ever sue a

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USC employee in court for defamatory statements or other claims that are completely unrelated to Cook's employment.

(*Cook, supra*, 102 Cal.App.5th at p. 325.)

*Ayala-Ventura* involved a lawsuit brought by an employee against her employer, “CCS Facility Services-Fresno Inc.,” a company which “provides commercial janitorial services” (CCS). (*Ayala-Ventura, supra*, 119 Cal.App.5th at p. 246.) CCS sought to compel arbitration, but the plaintiff contended that the arbitration agreement she signed with CCS was unconscionable. (*Ibid.*)

*Ayala-Ventura* argues the Agreement's scope is overly broad because it applies to claims unrelated to her employment relationship with CCS and requires binding arbitration of essentially any claim she may have against her employers and all related entities and individuals whether arising out of employment or not. . . . the Agreement mandates arbitration ‘of all claims, disputes, and/or controversies (collectively ‘claims’), whether or not arising out of [Ayala-Ventura]'s employment or the termination of employment, that Company may have against [Ayala-Ventura] or that [Ayala-Ventura] may have against Company or against its employees or agents in their capacity as employees or agents.’ CCS claims this language means if a claim arises out of employment but does not involve termination of employment, it is still covered and vice versa. CCS argues the Agreement is not overbroad because its intended scope is employment-related claims.

Notwithstanding that the agreement appeared to apply to claims other than those relating to her employment, the court construed the agreement in *Ayala-Ventura* to be limited to employment-related claims.

The parties' opposing interpretations reflect the Agreement is somewhat ambiguous in its application to claims that are not employment related. Ambiguities in an adhesive contract are construed against the drafter. (*Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 247–248; *Victoria v. Superior Court* (1985) 40 Cal.3d 734, 739.) Civil Code section 1654 codifies this principle by mandating an interpretation against the drafting party who caused the uncertainty but only ‘[i]n cases of uncertainty *not removed by the preceding rules.*’ (Italics added.) Civil Code section 1643 precedes Civil Code section 1654 and requires interpretation of a contract that ‘will make it lawful, operative, . . . and capable of being carried into effect, if it can be done without violating the intention of the parties.’

(*Ayala-Ventura, supra*, 119 Cal.App.5th at p. 246.) Significantly, the court noted that:

Our Supreme Court has specifically applied Civil Code section 1643 in construing arbitration agreements. ‘Where a contract is susceptible to two interpretations, one which renders it valid and the other which renders it void, a court should select the interpretation that makes the contract valid.’ (*Ramirez, supra*, 16 Cal.5th at p. 507; *Pearson Dental Supplies, Inc. v. Superior Court* (2010) 48 Cal.4th 665, 682 [‘When an arbitration

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provision is ambiguous, we will interpret that provision, if reasonable, in a manner that renders it lawful, both because of our public policy in favor of arbitration as a speedy and relatively inexpensive means of dispute resolution, and because of the general principle that we interpret a contractual provision in a manner that renders it enforceable rather than void.’].) Construing the Agreement in a manner that avoids unconscionability, we interpret the Agreement as applying to only employment-related claims.

(*Ayala-Ventura, supra*, 119 Cal.App.5th at p. 246.)

The court also found that “*Cook* must be considered in its own context which differs materially from the circumstances in this case,” reasoning as follows:

The agreement in *Cook* was unconscionable in part because of the multifarious ways in which a claim against USC “completely unrelated to [Cook’s] employment” could arise. (*Cook, supra*, 102 Cal.App.5th at p. 318.) As an example, the trial court observed that if Cook were to undergo a botched surgery at USC’s hospital in 15 years, her claims would still be subject to arbitration. (*Ibid.*) Given CCS solely provides commercial janitorial services, we are hard-pressed to discern how a similarly vast range of claims completely unrelated to Ayala-Ventura’s employment could arise, nor does Ayala-Ventura offer a similar panoply of potential claims she might assert. The Agreement’s scope is not unconscionably broad under the circumstances in this case.

(*Ayala-Ventura, supra*, 119 Cal.App.5th at p. 257.)

Here, the scope provision is more analogous to that considered in *Ayala-Ventura* than the one in *Cook*. The scope provision in the instant agreement contains language that does not appear to have been in the provision considered in *Ayala-Ventura*: “past, present, or future.” Plaintiff could have claims against defendant in the future outside of the employment context. For example, he could sue defendant on behalf of himself or a family member for a claim arising from treatment or care at defendant’s facility. Contrary to defendant’s argument, the list of covered claims is not limited to employment-related claims, because it includes “claims for breach of any contract or covenant, express or implied,” “tort claims,” and “claims for violation of any federal, state or other governmental constitution, statute, ordinance, or regulation, except as explicitly excluded herein.” Based on the language of the scope provision, plaintiff would be compelled to arbitrate these claims, making the Agreement more like that found in *Cook*, rather than in *Ayala-Ventura*.

If it cannot be severed, the overbroad scope provision makes the Agreement substantively unconscionable. However, our Supreme Court has directed trial courts to consider severability.

The basic principles of severability that emerge from Civil Code section 1599 and the case law of illegal contracts appear fully applicable to the doctrine of unconscionability. Courts are to look to the various purposes of the contract. If the central purpose of the contract is tainted with illegality, then the contract as a whole cannot be enforced. If the illegality is collateral to the main purpose of the contract, and the illegal provision can be

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extirpated from the contract by means of severance or restriction, then such severance and restriction are appropriate.

(*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 124.)

An unconscionable contractual term may be severed and the resulting agreement enforced, unless the agreement is permeated by an unlawful purpose, or severance would require a court to augment the agreement with additional terms. [Citation.]” (*Penilla v. Westmont Corp.* (2016) 3 Cal.App.5th 205, 223, 207 Cal.Rptr.3d 473.) Severance may be properly denied when the agreement contains more than one unconscionable provision, and ““there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement.””

(*Cook, supra*, 102 Cal.App.5th at pp. 328-329, quoting *Baxter v. Genworth North America Corp.* (2017) 16 Cal.App.5th 713, 738; see also *Stoker, supra*, 120 Cal.App.5th at p. 113:

Finally, the court noted, if a contract contains a severance clause, a court “should take it into account as an expression of the parties’ intent that an agreement curable by removing defective terms should otherwise be enforced. [Citations.] That said, we note that the parties to an agreement cannot divest a trial court of its discretion under Civil Code section 1670.5 by including such a severance clause.”

Here, the Agreement has a severance clause which states that:

Any and all issues regarding the scope, interpretation, and enforceability of this Agreement shall be decided exclusively by a court of competent jurisdiction, and not by the arbitrator. In the event any provision of this Agreement is found to be unenforceable by such court, that provision shall be deemed modified to the extent necessary to allow enforceability of the provision as so limited, it being intended that the Parties shall receive the benefit contemplated in this Agreement to the fullest extent permitted by law. *If* a deemed modification is not satisfactory in the judgment of such court, the unenforceable provision shall be deemed deleted, and the validity and enforceability of the remaining provisions shall not be affected thereby

(Agreement, at pp. XV-XVI.)

Plaintiff has failed to demonstrate that the Agreement is permeated with unconscionability such that severance is inappropriate. Defendant’s drafting of the provision at issue does not appear to have been done in bad faith and can reasonably be seen as an attempt to ensure that all employment-related claims are covered. As discussed above, the scope language is improperly overbroad; the court therefore severs it as follows:

**Voluntary Mutual Agreement to Arbitrate and Waive Jury Trial.** Company and Employee agree to resolve any and all disputes between them, past, present or future, ~~whether or not~~ arising out of or in any way related to Employee's application for employment with Company or the employment relationship, including any disputes upon

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termination, by binding arbitration as the sole and exclusive remedy of the Parties to the fullest extent permitted by law.

By deleting the struck-out language, the Agreement is limited to employment-related disputes. As so modified, the Agreement is enforceable.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

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2:00PM LINE 9

25-CIV-09818

PETER BURJANEC VS. META PLATFORMS INC.

PETER BURJANEC  
META PLATFORMS INC.

DAVID T. WANG  
SHARDE T SKAHAN

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**Plaintiff's Motion for Leave to File First Amended Complaint; Request for Monetary Sanctions**

**TENTATIVE RULING:**

Plaintiff Peter Burjanec's Motion for Leave to File First Amended Complaint and Request for Monetary Sanctions is **GRANTED in part**.

Attorney of record for Defendant Meta Platforms, Inc., Shardé T. Skahan, is **ORDERED TO APPEAR** to explain why Meta's memorandum of points and authorities in support of its opposition states that *Fall River v. Superior Court* (1988) 206 Cal.App.3d 431 (*Fall River*) involved a "den[ia] [of] joinder where the factual divergence between claims was too great" (Sept. 2, 2026 Memo. of Points & Auths. iso Opposition (Opp.), at p. 7:25-26) when the case did not involve any issue of joinder but instead the improper denial of a motion for judgment on the pleadings made on the basis that the plaintiffs had failed to comply with the Government Claims Act because the challenged cause of action "patently attempt[ed] to premise liability on an entirely different factual basis than what was set forth in the tort claim." (*Fall River, supra*, at p. 435).

A court may, in its discretion, allow amendment to any pleading upon any terms as may be just after notice to the adverse party. (Code Civ. Proc., § 473, subd. (a); see *id.*, § 576.) Motions for leave to amend are directed to the sound discretion of the judge, but that discretion must be "exercised liberally to permit amendment of the pleadings. [citations] The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428, citations omitted.) "With respect to the amendment of pleadings, there has developed in this state a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576, superseded by statute on other grounds, see *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, .)

Here, plaintiff Peter Burjanec seeks to file an amended complaint that adds Umar Butt as an additional plaintiff, because Meta has refused to stipulate to the amendment. Burjanec and Butt allege that they held the same position; were on the same team; reported to the same supervisor who acted against them due to her anti-male animus; reported to the same skip-level manager; were fired in the same pretextual reduction-in-force layoff based on the same pretextual 'low performer' rationale; were subjected to the same defamatory statements made by Meta's

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